

3. M-CV-0098693 Smith, Charley D v. Murphy, Anna M

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the Complaint

Defendant demurs to the verified complaint filed on August 7, 2026 in this unlawful detainer matter.

A party may demur where the court lacks subject matter jurisdiction, where the pleading does not state facts sufficient to constitute a cause of action, or where the complaint is uncertain. (Code Civ. Proc., § 430.10, subds. (a), (e), (f).) "Uncertainty" is defined as "ambiguous and unintelligible." (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant contends the complaint fails because the subject premises have been discharged in bankruptcy, there is another action pending, the foreclosure was improper and relies on an unperfected lien rendering the sale and sheriff's deed void and ineffective, and the matter is stayed pending appeal pursuant to Code of Civil Procedure section 916(a). Defendant's arguments would require this court to rely on information that is extrinsic to the complaint and for which no request for judicial notice has been made, which would exceed the scope of demurrer. While defendant's moving papers reference two other case numbers (25-23746 and C101114), defendant does not specify what court she is referring to. The mere statement that there is another action pending is insufficient to show this court lacks subject matter jurisdiction. There is no appeal filed in this action so there is no stay currently in place as to this action pursuant to Code of Civil Procedure section 916(a). Additionally, defendant's briefing references a request for damages; however, the complaint prays for holdover damages only, not any other damages, so it is not clear to the court to what defendant is referring. Finally, issues of title may not be litigated by way of a demurrer to the complaint in an unlawful detainer action, and they may only be litigated in a limited way at trial on a post-foreclosure unlawful detainer action. (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385; *Struiksma v. Ocwen Loan Servicing, LLC* (2021) 66 Cal.App.5th 546, 554.) Defendant has raised no basis on which the court could sustain this demurrer. A review of the complaint reveals it adequately alleges facts sufficient to state a cause of action for post-foreclosure unlawful detainer pursuant to Code of Civil Procedure section 1161a and is not "ambiguous and unintelligible" so as to render the complaint uncertain.

Based on the foregoing, the demurrer is overruled. Defendant shall file and serve an answer by September 14, 2026.

4. M-CV-0098802 Woodcreek-Roseville LTD v. Kiara Jones

Motion to Quash

Defendant moves to quash service of summons pursuant to Code of Civil Procedure section 418.10. Plaintiff has not filed any proof of service of summons declaring service of the summons and complaint has been effective. Defendant's motion is therefore premature and is denied without prejudice.

5. S-CV-0049211 Ferriera, Danielle v. Anderson Merchandisers

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval of the Class Action and PAGA Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) When reviewing the fairness of the settlement, the court is to give due regard to the parties' agreement, ensuring that the agreement is not a product of fraud, overreaching parties, or collusion and that the settlement, as a whole, is fair, reasonable, and adequate. (*7-Eleven Owners for Fair Franchising v. Southland Corp.* (2000) 85 Cal.App.4th 1135, 1145.) A presumption of fairness exists where: (1) the settlement was reached through arms-length bargaining; (2) the investigation and discovery were sufficient to allow class counsel and the court to act intelligently; (3) class counsel is experienced in similar litigation; and (4) there is a small percentage of objectors. (*Ibid.*)

Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699, subd. (I); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*O'Connor, supra*, 201 F.Supp.3d at p. 1120.)

The court has carefully reviewed and considered the class action and PAGA action settlement agreement, plaintiff's moving papers, and declarations and exhibits submitted